

OFFICIAL TITLE REPORT

Title Number: LN782451
Edition Date: 22 November 2023
Title Type: Absolute Freehold

Property Description

The land and buildings known as Lot 7, Victoria Park Estate, 42-48 Victoria Park Road, London E9 7HD, as shown edged with red on the title plan filed at the Land Registry.

The property comprises a freehold parcel of land with an approximate area of 0.34 hectares (0.84 acres). The site is roughly rectangular in shape and is bounded to the north by Victoria Park Road, to the east by residential properties on Cadogan Terrace, to the south by the rear gardens of properties on Wick Road, and to the west by an access road serving the Victoria Park Estate.

The property currently contains a two-storey detached commercial building of approximately 1,200 square metres gross internal area, together with associated hardstanding and landscaped areas.

Registered Owner

Victoria Park Developments Ltd (Company No. 08234571)
Registered office: 17 Hackney Road, London E2 7NX
Registered as proprietor on **14 March 2019**.

Price Paid / Value Stated

The price stated on the transfer dated 14 March 2019 was **£4,250,000** (Four Million Two Hundred and Fifty Thousand Pounds).

Charges Register

Entry	Date	Details
1	15 March 2019	LEGAL CHARGE dated 15 March 2019 in favour of Barclays Bank PLC (Company No. 01026167), registered office at 1 Churchill Place, London E14 5HP. The charge secures further advances. NOTE: Copy of charge filed under reference LN782451/1.

2	1 June 1952	RESTRICTIVE COVENANT dated 1 June 1952 contained in a conveyance of the land in this title by the London County Council to Herbert William Marsh. See details under Restrictive Covenants below.
---	-------------	--

Restrictive Covenants

The following restrictive covenants are contained in the conveyance dated 1 June 1952 and are binding on the registered proprietor and successors in title:

- (i) **Covenant not to use for industrial purposes:** The property shall not at any time be used for any industrial, manufacturing or heavy commercial purpose, nor for any purpose which may be or become a nuisance, annoyance or disturbance to the owners or occupiers of neighbouring properties.
- (ii) **Covenant to maintain boundary fencing:** The proprietor shall at all times maintain in good repair boundary fencing to a minimum height of 1.8 metres (6 feet) along all boundaries of the property which adjoin residential properties.
- (iii) **Covenant not to build above 4 storeys:** No building or structure shall be erected on the property which exceeds four (4) storeys in height, measured from the existing ground level at the date of the conveyance.

Easements

- (a) **Right of way:** The property has the benefit of a right of way at all times and for all purposes with or without vehicles over the access road to the north of the property (coloured brown on the title plan) leading to Victoria Park Road.
- (b) **Drainage easement:** There exists a drainage easement for a shared sewer running in a north-easterly to south-westerly direction across the property (shown by a broken blue line on the title plan). The registered proprietor is obliged to permit access for maintenance and repair of the sewer by the relevant statutory undertaker and by the owners of adjoining properties having the benefit of the easement.

Noted Entries

- (a) **Planning permission B/2023/4521:** Planning permission was granted by the London Borough of Hackney on 8 September 2023 for the demolition of the existing commercial building and the erection of a residential development comprising 48 residential units (12 x 1-bed, 24 x 2-bed, 12 x 3-bed) in two blocks of 3 and 4 storeys respectively, together with associated landscaping, car parking (24 spaces) and cycle storage.
- (b) **Section 106 Agreement:** A Section 106 Agreement (Town and Country Planning Act 1990) dated 12 October 2023 between the London Borough of Hackney (1), Victoria Park Developments Ltd (2), and Barclays Bank PLC (3) has been registered against the title. Key obligations include: provision of 35% affordable housing (17 units), contribution of £185,000 towards local highway improvements, contribution of £75,000 towards public open space, and a commitment to enter into a local employment agreement during the construction phase.

Cautions and Restrictions

There are no cautions, restrictions on disposition, or inhibitions registered against this title.

This report reflects the entries on the register as at 12:00 on 22 November 2023. It is not a copy of the register and may not be relied upon for the purposes of Section 67 of the Land Registration Act 2002.

Issued by: **HM Land Registry**
Trafalgar House, 1 Bedford Park, Croydon CR0 2AQ